

Clearing the myths and lies around CAA+NRC

Q1. Do Indian Muslims need to worry about CAA + NRC?

Ans: No Indian citizen of any religion needs to worry at all either about CAA or NRC.

Q2. Will people be excluded in NRC on religious grounds?

Ans: No. NRC is not about religion at all. NRC, as and when conducted, shall not be and can not be on religious grounds. No one can be excluded from being a follower of any religion.

Q3. How is citizenship decided? Will it be in the hands of the government?

Ans: The citizenship will be decided as per The Citizenship Rules, 2009 as framed under The Citizenship Act, 1955. They are in the public domain. There are five ways in which a person can become an Indian citizen:

- I. Citizenship by Birth,
- II. Citizenship by descent,
- III. Citizenship by registration,
- IV. Citizenship by naturalization,
- V. Citizenship by incorporation of territory

****Details enclosed in the annexure***

Q4. When NRC comes, will I have to provide details of the birth of parents, etc. to prove my Indian citizenship?

Ans: Details of your birth like date/month and year and place of birth are enough. If not available, you may have to provide such details of the birth of parents, but no documents will be required to be compulsorily submitted, w.r.t parents. Citizenship can be proved by submitting any documents relating to the date and place of birth. The details of such admissible

documents are yet to be decided. But they are likely to include voter card, passport, Aadhaar, license, insurance papers, birth certificate, school leaving certificate, land or house papers or such other documents issued by public authorities. The list of these documents is likely to be fairly long so that no Indian citizen is put to any undue harassment.

Q5. When NRC comes, Do I have to prove ancestry dating back before 1971?

Ans: No. You don't have to prove any ancestry by presenting any document like ID cards or birth certificates of parents/ ancestors dating back to before 1971. That was valid only for the Assam NRC and mandated by the Assam Accord and implemented on the directions of Hon'ble Supreme Court. NRC procedure in the rest of the country is entirely different as provided under The Citizenship(Registration of Citizens and Issue of National Identity Cards) Rules, 2003.

Q6.What if a person is illiterate and does not have relevant documents?

Ans: In this case, authorities will allow him to bring witnesses, various other proofs/community verification etc. A due procedure will be followed. No Indian citizen will be put to undue trouble.

Q7. Does NRC exclude anyone for being transgender, atheist, Adivasis, Dalits, women and landless without/without documents?

Ans: No. NRC, as and when carried out, shall not affect any of the mentioned above.

Extracts from The Citizenship Act, 1955

I. Citizenship by Birth:

Article 5 of The Constitution of India provides that any person who was domiciled in India on 26th January 1950 and;

A. Who was born in the territory of India; or

B. Either of whose parents were born in the territory of India; or

C. Who has been ordinarily resident in the territory of India for not less than five years immediately preceding such commencement, shall be a citizen of India.

- Any person born in India on or after the 26th of January 1950, but before the 1st of July 1987 is a citizen of India by birth.
- Any person who is born between 1st July 1987 and 3rd December 2004 and either of whose parents is a citizen of India is also a citizen of India by birth.
- Any person born after 3rd December 2004 and both of whose parents are citizens of India or one of them isn't an illegal immigrant at the time of his birth and the other is a citizen of India shall also be a citizen of India by birth.

II. Citizenship by descent:

- A person born outside India on or after the 26th January 1950, but before 10th December 1992 shall be a citizen of India by descent if his father was a citizen of India at the time of his birth.
- A person born outside India on or after 10th December 1992 but before 3rd December 2004, if either of his parents was a citizen of India at the time of his birth. A person born outside India after 3rd December 2004 shall be a citizen of India if either of his parents was a citizen of India and his birth is registered at the Indian Consulate.

III. Citizenship by registration:

- A person of Indian origin who is ordinarily resident in India for seven years before making an application for registration is eligible to be registered as a citizen of India.
- A person of Indian origin who is ordinarily resident in any country or place outside undivided India shall be a citizen of India
- A person who is married to a citizen of India and is ordinarily resident in India for seven years before making an application for registration is eligible to be registered as a citizen of India.
- Minor children of persons who are citizens of India are eligible to be registered as a citizen of India.
- A person of full age and capacity whose parents are registered as citizens of India is eligible to be registered as a citizen of India
- A person of full age and capacity who has been registered as an overseas citizen of India for five years, and who has been residing in India for twelve months before making an application for registration is eligible to be registered as a citizen of India.

IV. Citizenship by naturalization:

- Any person of full age and capacity on fulfilling the residency requirement of twelve years is eligible for a grant of a certificate of naturalization.

V. Citizenship by incorporation of territory:

- If any new territory becomes a part of India, the Government shall specify the persons who among the people of the territory shall be the citizen of India. Such persons become the citizen of India from the notified date. This happened in the case of Goa, Daman & Diu, Sikkim and many Bangladeshi enclaves which became part of India in 2014.